

## 22AHCV01391 22AHCV01391

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-07

Motion: DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT AND MOTION TO STRIKE FILED BY DEFENDANT TANG GONG RESTAURANT GROUP LLC; MOTION TO STRIKE FILED BY DEFENDANTS SOUTH ATLANTIC INVESTMENT LLC, WEI "JASON" CHEN, AND CUONG C. LUU

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Case Number: 22AHCV01391 Hearing Date: July 7, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF  
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST  
DISTRICT

JOY CA,  
LLC,

Plaintiff(s),

vs.

SOUTH  
ATLANTIC INVESTMENT LLC, et al.,

Defendant(s).

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CASE NO.: 22AHCv01391

[TENTATIVE]

ORDER RE: DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT AND MOTION  
TO STRIKE FILED BY DEFENDANT TANG GONG RESTAURANT GROUP LLC; MOTION TO  
STRIKE FILED BY DEFENDANTS SOUTH ATLANTIC INVESTMENT LLC, WEI "JASON" CHEN,  
AND CUONG C. LUU

Dept.

3

8:30

a.m.

July 7,

2026

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I.

## INTRODUCTION

This ruling addresses a demurrer and motion to strike filed by defendant Tang Gong Restaurant Group LLC ("Tang Gong"), in addition to a motion to strike filed by defendants South Atlantic Investment LLC ("SAI"), Wei "Jason" Chen ("Chen"), and Cuong C. Luu ("Luu") (collectively, the "SAI Defendants").

All of these responsive pleadings are unopposed.

II.

## TANG

### GONG'S DEMURRER AND MOTION TO STRIKE

Tang Gong demurs to the First, Third, Fourth, and Fifth Causes of Action on the grounds that they fail to state sufficient facts to constitute a cause of action. Tang Gong also demurs to the entire complaint on the grounds that it is uncertain, ambiguous, and unintelligible.

#### First Cause of Action

##### Tang Gong

demurs to Plaintiff's First Cause of Action for breach of contract on the grounds that there is no contract alleged between Tang Gong and Plaintiff. The existence of a contract is an element of a claim for breach of contract. (McDonald v. John P. Scripps Newspaper (1989) 210 Cal.App.3d 100, 104.) Plaintiff alleges only that it entered into a lease agreement with SAI on or about June 1, 2019. Accordingly, there is no contract alleged against Tang Gong and the demurrer to the First Cause of Action is SUSTAINED without leave to amend.

#### Third, Fourth, and Fifth Causes of Action

Tang Gong also demurs to Plaintiff's

Third Cause of Action for intentional misrepresentation, Fourth Cause of Action

for Negligent Misrepresentation, and Fifth Cause of Action for Unfair and Fraudulent Business Practices in violation of Business and Professions Code § 17200.

The demurrer to the Third and Fourth

Causes of Action for fraud are SUSTAINED. Plaintiff fails to allege any intentional or negligent misrepresentation by Tang Gong or its representatives and claims for fraud must be pled with specificity. (Cooper v. Equity Gen. Insurance (1990) 219 Cal.App.3d 1252, 1262, reh'g denied and opinion modified (May 29, 1990) [every element of a cause of action for fraud must be alleged both factually and specifically].)

The demurrer to the Fifth Cause of

Action is also SUSTAINED. Plaintiff does not allege any unlawful, unfair, or fraudulent conduct. Plaintiff does not identify any particular statute that was violated nor does it allege any deceptive advertising, anti-competitive conduct, or fraud. (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 619.)

Demurrer for Uncertainty

Tang Gong demurs to the entire FAC on

the grounds that it is uncertain, ambiguous, and unintelligible, but its memorandum of points and authorities contains no discussion in support of this argument. Accordingly, the demurrer on this ground is OVERRULED.

Motion to Strike

Tang Gong's motion to strike is GRANTED

with respect to Plaintiff's requests for punitive damages and attorneys' fees. Plaintiff does not allege any fraud, malice, or oppression with the requisite specificity nor does it allege a basis for attorneys' fees. (Civ. Code, § 3294; Code Civ. Proc., § 1021.)

The motion to strike any allegations to

joint and several liability and conspiracy is DENIED because Tang Gong offers no argument in its memorandum of points and authorities in support of this request.

III.

THE

## SAI ENTITIES' MOTION TO STRIKE

The SAI Entities move to strike

Plaintiff's prayer for attorney's fees in connection with all causes of action other than its First Cause of Action. The SAI Entities also move to strike Plaintiff's prayer for punitive damages from the entire FAC.

The motion to strike attorneys' fees is

GRANTED because Plaintiff fails to allege any basis for such an award for its Second, Third, Fourth, or Fifth Causes of Action. (Code Civ. Proc., § 1021.) To the extent that Plaintiff claims to assert a UCL claim in the public interest, Plaintiff fails to allege how the public's interest is implicated.

The motion to strike Plaintiff's prayer

for punitive damages in connection with Plaintiff's Second Cause of Action for negligence, Fourth Cause of Action for negligent misrepresentation, and Fifth Cause of Action for unfair business practices is GRANTED because punitive damages are not available for these claims. (Civ. Code, § 3294.) The motion to strike Plaintiff's prayer for punitive damages in connection with its Third Cause of Action for intentional misrepresentation is GRANTED because Plaintiff impermissibly alleges the amount of punitive damages in Paragraph 110.

IV.

## CONCLUSION

Plaintiff did not oppose Tang Gong's

demurrer or motion to strike and therefore fails to show how amendment is possible. "If there is a reasonable possibility that the defect in a complaint can be cured by amendment, it is an abuse of discretion to sustain a demurrer without leave to amend. The burden is on the plaintiff, however, to demonstrate the manner in which the complaint might be amended." (Association of Community Organizations for Reform Now v. Department of Industrial Relations (1995) 41 Cal.App.4th 298, 302 [cleaned up].) Accordingly, Tang Gong's demurrer is SUSTAINED without leave to amend as to the FAC's First, Third, Fourth, and Fifth Causes of Action. Tang Gong's motion to strike is GRANTED without leave to amend with respect to Plaintiff's requests for attorneys' fees and punitive damages.

Tang Gong's motion to strike is DENIED

with respect to Plaintiff's allegations of joint and several liability and conspiracy.

The SAI Entities' motion to strike

Plaintiff's requests for attorneys' fees is GRANTED. The SAI Entities' motion to strike Plaintiff's allegations in support of punitive damages and its prayer for punitive damages is GRANTED. Since Plaintiff did not oppose the SAI Entities' motion to strike, the Court does not grant leave to amend the FAC.

Moving

parties to give notice.

Dated

this 7th

day of July 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at [email protected] indicating intention to submit on the tentative as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.